

**JUSTIFICATION AND APPROVAL FOR
OTHER THAN FULL AND OPEN COMPETITION
10 U.S.C. § 3205**

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by Federal Acquisition Regulation (FAR) 12.102(b), FAR Class Deviation 25-21 Rev. 1 for FAR Part 12¹, FAR 6.103, FAR Class Deviation 25-11 for FAR Part 6 and in accordance with the requirements of RFO 6.104, the justification for the use of the statutory authority under RFO 6.103 is justified by the following facts and rationale required under RFO 6.104-1 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security, United States Coast Guard (USCG), Aviation Logistics Center (ALC), Long Range Surveillance (LRS) Product Line (PL) proposes to enter into a contract on a basis other than full and open competition.

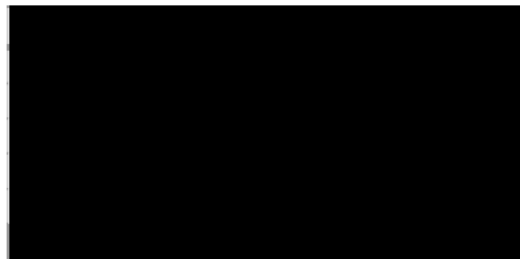
2. Nature and/or Description of the Action being Approved.

(a) Nature of the action: The USCG, ALC, and LRS PL requests the approval to solicit and award, on a sole source basis, a firm-fixed price contract for the procurement of HI-TAK Polyurethane Gaskets & Other Sealants used on the HC-130J aircraft.

(b) Name and address of the contractor:
Aviation Devices and Electronic Components, LLC (AVDEC)
3215 W. Loop 820 S.
Fort Worth, TX 76116-5941
Cage Code: 1NPE1

(c) Contract Type: Firm-Fixed Price, Indefinite-Delivery, Requirements Type Contract.

(d) Estimated total value (including options): 



(e) Type of funding: Operations and Support (O&S) funds

¹ In this document, citations to RFO Parts 12, 6, 10, 15, and 25 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 25-21 Rev. 1 for FAR Part 12, FAR Class Deviation 25-11 for FAR Part 6, FAR Class Deviation 25-06 for FAR Part 10, FAR Class Deviation 26-08 Rev. 1 for FAR Part 15, and FAR Class Deviation 26-09, Rev. 1 for FAR Part 25, which were issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025.

(f) Year of funding: Fiscal Year 2026

(g) Solicitation number: 70Z03826QH0000032

(h) Background information about the requirement: The services under this justification were previously satisfied through the award of individual purchase orders on a sole source basis to Aviation Devices and Electronics Components, LLC (AVDEC).

3. Description of Supplies/Services.

The USCG, ALC, and LRS PL support the HC-130J aircraft by providing logistics, inventory management and sustainment support. As a part of this responsibility, LRS PL has a requirement for sustainment of numerous components used on the aircraft, which includes avionic components and accessories. This requirement is for the procurement of HI-TAK polyurethane gaskets & other sealants to be used on the HC-130J aircraft. These components provide a durable seal, protecting it from the harmful effects of extreme weather and surface damage to preserve the aircraft's structural integrity.

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3205 as implemented by RFO 12.102(b), and RFO 6.103 and in accordance with the requirements of RFO 6.104.

5. Identification of Exception to the Buy American Statute.

This requirement for the procurement of HI-TAK polyurethane gaskets & other sealants does not take exception listed under FAR 25.103(b) or FAR 25.202(a)(2). Therefore, the Buy American Act will be included in the terms and conditions of this requirement.

6. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

(a) Rationale for using the authority cited in section 4 of the J&A.

Aviation Devices and Electronic Components, LLC (AVDEC) is the Original Equipment Manufacturer (OEM) for the HI-TAK polyurethane gaskets & other sealants. The specifications, manufacturing drawings, data, test equipment, and tooling required for the manufacture of the various gaskets is proprietary to AVDEC. The USCG did not purchase the rights to the proprietary data required to foster a competitive environment as part of any original provisioning for use on the HC-130J aircraft. To maintain the integrity of the aircraft, ensure compatibility of the replacement components, and safe operations, these items must be procured by the OEM, AVDEC.

(b) Details covering what events lead to the situation requiring use of other than full and open competition procedures including whether any portion of the work can be segregated to allow for competition;

LRS Engineering Officers have determined that interested parties must have continued access to OEM manuals, specifications, and data to provide factory new, manufactured HI-TAK polyurethane gaskets & other sealants in this requirement. The USCG is prohibited from disclosing any technical documents in their possession as these were developed at private

expense by AVDEC and are proprietary. For these reasons, other than full and open competition procedures are necessary for this requirement, and no portion of this procurement can be segregated to allow for competition.

(c) Summarize alternatives considered and why they will not work;

During conduction of market research, Source One Spares responded on 11/10/2025 to the sources sought notice posted on SAM.gov. Source One Spares did not indicate that they are an OEM authorized distributor nor do they have the proprietary information to manufacture these items. The OEM, AVDEC, is the only authorized distributor and manufacturer for the HI-TAK polyurethane gaskets & other sealants. There are no alternate sources, therefore, no alternative sources may be considered.

(d) Impact to the mission that would result if the J&A is not approved and, consequently, the product or service not provided.

Failure to approve this sole source Justification for Other than Full and Open Competition will jeopardize the performance of the USCG's mission due to grounding of aircraft as a result of insufficient stock being available as HI-TAK polyurethane gaskets & other sealants are required for the HC-130J aircraft.

(e) *(Section is required to be completed when the J&A includes the exception listed under RFO 25.103(b)(2) or RFO 25.202(a)(2))* Rationale for use of the nonavailability exception to the Buy American statute, including detailed information explaining why the particular articles, materials, or supplies of the class or kind to be acquired, either as end items or components, are not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities and of a satisfactory quality.

The exceptions under FAR 25.103(b)(2) or FAR 25.202(a)(2) do not apply to this requirement.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

(a) If an entry was made in APFS, provide the publication date.

A public forecast record was posted to Acquisition Planning Forecast System (APFS). Forecast Record F2025071242 was published on 02/02/2026.

(b) If an announcement has already been made in SAM.gov, provide the publication date.

Sources Sought Notice 70Z03826IH0000004 was posted to SAM.gov on 10/27/2025 and closed on 11/10/2025.

(c) If an announcement is being planned for posting in SAM.gov, provide the estimated publication date.

This J&A will be posted to the Government-wide Point of Entry (GPE) website, SAM.gov. It is anticipated that a solicitation will be posted to the GPE via SAM.gov on approximately 05/14/2026. Any capability statement or quote received in response to the combined synopsis/solicitation will be considered prior to award.

- (d) If an announcement will not be published, identify the applicable exception under RFO Part 5.

The exceptions under RFO 5.202 do not apply to this requirement.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer anticipates the prices for this procurement will be fair and reasonable in accordance with (IAW) RFO 12.204(a). This will be based on comparison with similar items in a related industry and comparison to the Independent Government Cost Estimate (IGCE).

9. Description of Market Research.

- (a) Describe the market research techniques used, results, date(s) when the market research was conducted, and how the contracting officer used the market research to determine price reasonableness.

Market research was conducted IAW FAR Part 10 from May 2025 through February 2026. Market research indicates that the procurement of the HI-TAK polyurethane gaskets & other sealants identified in this requirement are not listed on a General Services Administration (GSA) contract or available through GSA Advantage. Market research also consisted of querying the Acquisition history, Internet Search, Inventory Locator System (ILS), DHS-Wide and Multi-Component Contract Vehicles, Excess from Other Agencies, AbilityOne, and Contracting Opportunities. These searches revealed no alternate supply sources. The OEM is the only approved source to provide the HI-TAK polyurethane gaskets & other sealants. The procurement of these HI-TAK polyurethane gaskets & other sealants for the HC-130J aircraft is commercial in nature and is prevalent in private aviation and commercial aviation. All terms and conditions are not expected to differ from customary terms and conditions in the marketplace or standard Government practices.

Sources sought notice 70Z03826IH0000004 was posted to SAM.gov on 10/27/2025 and closed on 11/10/2025. The sources sought notice received two (2) timely responses. One of the responses received was from the OEM, AVDEC, and determined capable.

- (b) *(Section is required to be completed when the J&A includes the exception listed under RFO 25.103(b)(2) or RFO 25.202(a)(2)).* Describe the market research results that support the determination that the items are nonavailable.

The exceptions under RFO 25.103(b)(2) or RFO 25.202(a)(2) do not apply for this requirement.

- (c) If market research was not conducted, state why.

Not applicable. Market research was conducted IAW FAR Part 10 from May 2025 through February 2026.

- (d) If patents, copyrights, and/or intellectual property are applicable to the acquisition, describe the circumstances for acquiring a patented or copyrighted product on the representation of the intellectual property holder that has not been licensed for resale and consult with the Coast Guard IP attorney.

This requirement does not have patents, copyrights, and/or intellectual property.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

- (a) An explanation why technical data packages, specifications, statement of work, or purchase descriptions are not suitable for full and open competition.

The HI-TAK polyurethane gaskets & other sealants to be procured under this acquisition are highly specialized in nature and developed by a non-Government activity. The technical data required to procure new, manufactured items from sources other than the OEM is not available. AVDEC is the only authorized manufacturer for the HI-TAK polyurethane gaskets & other sealants. AVDEC has not shown an interest in selling or providing the proprietary data rights to the Government or any other entity. It is not economically feasible for the USCG to purchase these proprietary rights.

- (b) Discuss why your requirement cannot be modified to enhance competition.

The HI-TAK polyurethane gaskets & other sealants to be procured are complex and must meet operational and reliability requirements, the achievement of which requires unique production techniques and extensive and/or sophisticated testing. The Government has not yet acquired or developed the technical data. If another potential source emerges, and the USCG is able to obtain the technical data, the USCG will assess whether competition for any future requirement is feasible.

- (c) For a proposed contract subject to the restrictions of RFO 6.103 for follow-on acquisitions as described in 6.103-1(c)(2)(i), all components must provide an estimate of the cost to the Government that would be duplicated and detailed information on how the estimate was derived.

This requirement is not subject to restrictions of RFO 6.103 as described in 6.103-1(c)(2)(i).

- (d) For a proposed contract subject to the restrictions of RFO 6.103-2(c) or HSAR 3006.103-2(c)(70), HSAR Class Deviation 25-01 and where RFO 6.103-2 is cited as the authority, describe the exceptional circumstances allowing for an award for a period of performance in excess of the one-year limitation (applicable to all federal agencies) or the DHS-specific statutory 150-day limitation.

This requirement is not subject to the restrictions of RFO 3.106-2(c) or Homeland Security Acquisition Regulation (HSAR) 3006.103-2(c)(70).

11. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.

A sources sought notice was issued in Contract Opportunities on SAM.gov on 10/27/2026 and closed on 11/10/2025 requesting that parties expressed their interest in writing to the Contracting Officer. Two (2) timely responses were received during the duration of the sources sought notice. OEM, AVDEC, responded to the sources sought notice confirming they are the sole manufacturer of the HI-TAK polyurethane gaskets & other sealants to be procured.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

- (a) Will the Government revise overly technical specifications, acquire data rights, etc.?

The USCG does not possess the technical data required to foster full and open competition for the procurement of the HI-TAK polyurethane gaskets & other sealants covered under this justification and approval. The USCG will continuously conduct market research to ensure that companies

interested in doing business with the USCG are given every opportunity to compete for future USCG requirements. To increase competition, program members conduct internet database research and ensure procurements are advertised in SAM.gov. If another potential source emerges, and the USCG is able to obtain the required technical data, the USCG will assess whether competition for any future requirements is feasible.

- (b) When a J&A is issued for the purposes of acquiring goods or services while a competitive procurement is being conducted, the justification should include a detailed timeline for completion of the competitive procurement. The period of performance for the sole source action should fairly balance the time needed to complete the competitive procurement. The focus should be on minimizing the need for additional sole source awards.

Not applicable to this requirement.

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RECOMMENDED FOR APPROVAL

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